• NON-DISCLOSURE AND TRADE SECRET PROTECTION AGREEMENT

This Agreement (the “Agreement”) is made and entered into as of _____, 20___ (the “Effective Date”) between THINKWELL LABS LLC (“Discloser”) and _____ (“Recipient”) (each a “Party” and collectively, the “Parties”).

1. PURPOSE

This Agreement is intended to:
• Protect the Discloser’s Confidential Information, Intellectual Property, and Trade Secrets from unauthorized use or disclosure
• Prevent the Recipient from misappropriating Confidential Information to compete unfairly
• Establish clear legal and financial consequences for breaches of confidentiality

The Recipient understands and agrees that they receive Confidential Information solely for the purpose of evaluating and engaging in a potential business relationship with the Discloser. Nothing in this Agreement obligates either Party to disclose any particular information or to proceed with any transaction or business relationship.

2. DEFINITIONS

• 2.1 Confidential Information

“Confidential Information” means any proprietary or sensitive information disclosed by the Discloser, in any form, including but not limited to: intellectual property, trade secrets, designs, inventions, formulas, algorithms, software, blockchain technology, research, marketing plans, business strategies, customer lists, prototypes, and financial data.

Confidential Information does not include information that:

1. Is or becomes publicly available through no fault of the Recipient
1. Is lawfully received from an unrelated third party without restriction
1. Is independently developed by the Recipient without reference to the Discloser’s Confidential Information, as evidenced by contemporaneous written records

All Confidential Information is provided “as is,” without any warranty of accuracy, completeness, merchantability, or fitness for a particular purpose.

Oral disclosures shall only qualify as Confidential Information if confirmed in writing by the Discloser within ten (10) business days of disclosure.

• 2.2 Trade Secrets

Certain Confidential Information qualifies as “Trade Secrets” under the California Uniform Trade Secrets Act (CUTSA). The Recipient agrees that:
• Trade Secrets shall remain confidential indefinitely
• Misappropriation of Trade Secrets will entitle the Discloser to injunctive relief and monetary damages, including enhanced damages and attorney fees, as per CUTSA §3426.3

3. RESTRICTIONS ON USE AND DISCLOSURE

• 3.1 Non-Use & Confidentiality Obligations

The Recipient shall not:

1. Use the Confidential Information for any purpose other than discussions with the Discloser
1. Disclose, copy, reproduce, modify, reverse-engineer, or exploit the Confidential Information
1. Share Confidential Information with any third parties unless explicitly authorized in writing by the Discloser

• 3.2 Limited Use of Residual Knowledge

The Recipient acknowledges that general skills, knowledge, and experience gained through discussions with the Discloser may be retained as residual knowledge. However, the Recipient shall not use specific Confidential Information or Trade Secrets to develop, market, or assist in the development of any product or service that directly competes with the Discloser's products or services as they exist or are in active development as of the Effective Date.

This restriction applies only to products or services that are substantially similar to those disclosed and within the Discloser's specific field of activity.

• 3.3 Compelled Disclosure

If the Recipient is legally compelled (by subpoena, court order, or otherwise) to disclose any Confidential Information, the Recipient shall:

1. Promptly notify the Discloser in writing, unless prohibited by law, so the Discloser can seek a protective order or other appropriate remedy
1. Only disclose the minimum amount of Confidential Information required to comply with the legal demand

• 3.4 No License Granted

Nothing in this Agreement shall be construed to grant the Recipient any license, right, or interest in the Discloser's Confidential Information or Intellectual Property, whether by implication, estoppel, or otherwise.

• 3.5 Limited Internal Access

The Recipient may share the Confidential Information only with its employees, advisors, or agents who need to know such information for the permitted purpose and who are each bound by written confidentiality obligations at least as protective as those in this Agreement.

4. NON-SOLICITATION PROVISIONS

• 4.1 Non-Solicitation of Employees

For one (1) year after termination of this Agreement, the Recipient shall not directly solicit, recruit, or hire any employees, contractors, or consultants currently working with the Discloser who had access to Confidential Information, except where solicitation arises from general advertising or non-targeted recruiting efforts not specifically directed at Discloser's personnel.

• 4.2 Non-Solicitation of Business Relationships

For one (1) year after termination of this Agreement, the Recipient shall not directly solicit customers, clients, or business partners identified in the Confidential Information for the purpose of providing competing products or services.

5. LEGAL CONSEQUENCES OF BREACH

• 5.1 Injunctive Relief

Any breach of this Agreement will cause irreparable harm to the Discloser. Accordingly, the Discloser shall be entitled to immediate injunctive relief to prevent or halt any such breach, without the necessity of proving monetary damages. The Recipient acknowledges that threatened as well as actual breach of this Agreement shall entitle the Discloser to seek injunctive relief.

• 5.2 Liquidated Damages

In the event of unauthorized disclosure or use of the Discloser's Confidential Information, the Recipient agrees to pay liquidated damages of $50,000 per material breach, which the Parties agree represents a reasonable estimate of the minimum actual damages the Discloser would suffer. This amount is not intended as a penalty.

If a court deems this amount unenforceable or unreasonable under the circumstances, the Discloser may still seek all other remedies available at law or equity, including actual damages.

If the breach involves Trade Secrets, the Discloser may seek enhanced damages and attorney fees as authorized under CUTSA.

• 5.3 Blue Pencil Provision

If any provision of this Agreement is deemed overly broad or unenforceable, the Parties agree that a court may modify such provision to make it enforceable while preserving the intent and maximum enforceable scope of the provision.

6. RETURN & CERTIFICATION OF DESTRUCTION

Upon termination of this Agreement or at the Discloser's written request, the Recipient shall:

1. Return all Confidential Information in any format (physical or digital)
1. Delete or destroy all copies, notes, or extracts containing Confidential Information
1. Provide written certification within ten (10) business days that the Recipient has complied with the obligations of this Section

7. TERM & TERMINATION

• 7.1 Term

• *Confidential Information*: Three (3) years from the Effective Date or until terminated by the Discloser in writing, whichever is later
• *Trade Secrets*: Indefinite, for so long as the information qualifies as a trade secret under applicable law

• 7.2 Survival

All non-use, non-disclosure, non-solicitation, and protective provisions shall survive termination for the periods specified above.

8. DISPUTE RESOLUTION

• 8.1 Arbitration

All disputes arising under or related to this Agreement shall be resolved exclusively by binding arbitration in Riverside County, California, under the American Arbitration Association (AAA) Commercial Arbitration Rules then in effect. One arbitrator shall be appointed; costs shall be shared equally unless otherwise determined by the arbitrator.

• 8.2 Injunctive Relief Exception

Notwithstanding the foregoing, either Party may seek temporary or preliminary injunctive relief in the state or federal courts located in Riverside County, California, without waiving the right to arbitration.

• 8.3 Attorney Fees

The prevailing Party in any arbitration or judicial proceeding to enforce this Agreement shall be entitled to recover its reasonable attorney's fees and costs.

9. GENERAL PROVISIONS

• 9.1 Indemnification

Recipient shall indemnify, defend, and hold harmless the Discloser from and against any third-party claims, losses, or liabilities arising from Recipient's unauthorized use or disclosure of Confidential Information.

• 9.2 Notices

Any notice required under this Agreement shall be in writing and deemed properly given when: (a) delivered personally, (b) five (5) days after being mailed by certified mail, (c) one (1) business day after deposit with a recognized overnight courier, or (d) upon confirmed electronic transmission if the Parties agree in writing to accept email notice.

• 9.3 No Public Disclosure

The Recipient may not disclose the existence or any terms of this Agreement without the Discloser's prior written consent.

• 9.4 No Assignment

The Recipient may not assign or transfer this Agreement or any rights or obligations hereunder without the Discloser's prior written consent. The Discloser may assign this Agreement without consent in connection with a merger, acquisition, or sale of substantially all of its assets.

• 9.5 Entire Agreement

This Agreement supersedes all previous agreements, negotiations, or understandings and constitutes the entire agreement between the Parties concerning the subject matter herein.

• 9.6 Severability

If any provision of this Agreement is held invalid or unenforceable, the remainder shall remain in full force and effect. Invalid provisions shall be reformed to the maximum extent possible to effectuate the intent of the Parties.

• 9.7 Governing Law

This Agreement shall be governed by and construed under the laws of the State of California, without regard to its conflict-of-law principles.

• 9.8 Counterpart Execution

This Agreement may be executed in any number of counterparts (including via electronic signature), each of which shall be deemed an original, and all such counterparts shall together constitute one and the same instrument.

• 9.9 Whistleblower Protection

Nothing in this Agreement prohibits the Recipient from reporting possible violations of law to governmental agencies or regulators, or from making disclosures protected under law.

10. SIGNATURES

Discloser:
THINKWELL LABS LLC

By: _____
Name: Briar M Greenway
Title: _____
Date: _____

Recipient:

By: _____
Name: _____
Title: _____
Date: _____
Email: _____

This Agreement has been carefully reviewed and the Parties acknowledge they have had the opportunity to consult with legal counsel before execution.